

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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ANTUAN GRANT,

Plaintiff,

- against -

ERIC CALLAGY, ROBERT MIGA, GARY
JACELON, CHRISTOPHER LATAUTO,
MICHAEL MITCHELL, MICHAEL VILA,
THOMAS O'BRIEN, DANIEL WARD, DEAN
SCHAUDER, BRUNO MAZZA, GERARDO
PERRONE, and DANIEL GUNKELBERGER,
employees of the New York City Police
Department,

Defendants.

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FIRST AMENDED COMPLAINT
15 CV 3157 (JBW)(MDG)

Jury Trial Demanded

Antuan Grant, by his attorney, the Law Office of Matthew Flamm, alleges the following upon information and belief as his First Amended Complaint.

Nature of the Action

1. This civil rights action arises from the July 28, 2012 use of force on and arrest and prosecution of Antuan Grant by New York City Police Officers. Plaintiff's claims are under the United States Constitution's Fourth, Fifth, Sixth, and Fourteenth Amendments. Plaintiff seeks compensatory and punitive damages for violation of his civil rights under 42 U.S.C. §1983.

Jurisdiction

2. This action arises under the United States Constitution and 42 U.S.C. §1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1331 and §1343(3). Plaintiff requests that this Court exercise pendent jurisdiction over those state law claims arising out of the same common nucleus of operative facts as do plaintiff's federal claims.

Venue

3. Under 28 U.S.C. §1391(b) and (c), venue is proper in the Eastern District of New York because defendant City of New York resides in that judicial District.

Parties

4. Plaintiff ANTUAN GRANT is a citizen of the United States of America residing in the State of New York, Bronx County.

5. The CITY OF NEW YORK is a municipal corporation within New York State. Pursuant to §431 of its Charter, the City of New York has established and maintains the New York City Department of Police as a constituent department or agency. At all times relevant, the City of New York employed the defendants named herein.

6. Defendants ERIC CALLAGY, ROBERT MIGA, GARY JACELON, CHRISTOPHER LATAUTO, MICHAEL MITCHELL, MICHAEL VILA, THOMAS O'BRIEN, DANIEL WARD, DEAN SCHAUDER, BRUNO MAZZA, GERARDO PERRONE, and DANIEL GUNKELBERGER (the "defendants") were at all times relevant employed by and acting within the scope of their employment by the New York City Police Department. On July 28, 2012, the defendants were assigned to 103rd Precinct. Defendants JACELON and O'BRIEN were Sergeants with direct supervision of the other defendants.

7. At all times relevant herein, the defendants were acting under color of state law.

Statement of Facts

8. On July 28, 2012 at approximately 3:00 a.m., Antuan Grant was lawfully present at, around and/or near the intersection of Parsons Boulevard and Archer Avenue in Queens, New York.

9. He had traveled there (his old neighborhood), by bus with a friend, Dahima Howell, to meet up with Mr. Grant's then-girlfriend, Ebony Burrowes.

10. Mr. Grant and the two woman walked down Parsons Boulevard towards a 24 hour grocery/convenience store.

11. They were near a McDonald's on Parsons Boulevard when a marked N.Y.P.D patrol car with, upon information and belief, defendants Callagy and Miga inside suddenly pulled up and stopped. The officers got out of their vehicle and started screaming "Freeze!" as they ran, their hands on their revolvers in the ready position, toward the trio. Mr. Grant and the woman immediately did as instructed.

12. Plaintiff alone was directed to put his hands against a wall, and a defendant searched Grant, revealing nothing illegal. The other defendant walked back to the patrol car and returned moments later.

13. The two officers began to handcuff Grant's left wrist. Plaintiff twice asked why he was being arrested, but was given no response. Plaintiff asked a third time, and the defendant who had returned from the patrol car violently slammed plaintiff's whole body, face, arms, and chest into the wall with such force that Grant fell to the ground on his right side. The officer who had been handcuffing plaintiff fell to the ground on top of Mr. Grant.

14. These two defendants then pummeled Grant with fists and feet.

15. Other patrol cars arrived, and other defendants joined in the assault on Grant.

16. A defendant grabbed Grant by his hair and pulled plaintiff to his feet, ripping out a chunk of hair from the scalp.

17. Grant was thrust into the back of a squad car and, shortly thereafter, he was pulled from the car, and an defendant came up and sprayed chemical agent directly at plaintiff's face. Grant was then thrust back into the car, eyes and face burning and unable to see anything other than a blur.

18. Defendants Jacelon and O'Brien were present but did nothing to prevent, end, or truthfully report the use of force on Antuan Grant.

19. Defendants took Grant to the 103rd Precinct where, in the parking lot, plaintiff was taken from the car and thrust to the ground where an officer began lifting Grant a few inches by his handcuffed wrists and dropping plaintiff back to the pavement. Someone eventually shouted at that defendant officer, in sum and substance, "OK, enough." Grant was stood up and walked inside of the Precinct.

20. Once inside, Grant, who still could not open his eyes without burning and pain, began having difficulty breathing. His chest became very heavy, he began to cough and gag, and he then began to vomit.

21. Grant was jailed for a time until he was taken to Queens Hospital Center for treatment.

22. While at the Precinct Stationhouse, plaintiff was, among other things, strip searched.

23. While at the 103rd Precinct Stationhouse, defendants prepared or allowed to be prepared false police reports accusing Mr. Grant of various crimes, including assaulting an officer.

24. Mr. Grant was eventually taken to Queens Central Booking to await arraignment.

25. While Mr. Grant was awaiting arraignment, defendant Callagy caused and other defendants allowed false statements to be made to the Queens County District Attorney's Office.

26. The misrepresentations caused plaintiff's prosecution under New York County Criminal Court Docket Number 2012QN040596 on the false charges of attempted robbery in the first and second degrees (felonies punishable with up to twenty-five years imprisonment), assault in the second and third degrees (one a felony punishable with up to seven years imprisonment and the other a misdemeanor), and resisting arrest (a misdemeanor punishable by up to one year imprisonment).

27. Mr. Grant was arraigned, and the false evidence caused high bail to be set. Plaintiff, unable to make bail, was remanded.

28. After several Court appearances, Mr. Grant, defendants, and others appeared and testified before a Grand Jury in September 2012.

29. On or about September 21, 2012, the Grand Jury voted No True Bill, that is, they did not indict Mr. Grant, and plaintiff was released.

30. The defendants, despite having a reasonable opportunity to do so, took no action to prevent, end, or truthfully report the unlawful conduct to which Mr. Grant was subjected.

31. The defendants' acts and omissions caused Antuan Grant to suffer loss of liberty, physical injury and pain, mental and emotional upset and trauma, fear, humiliation, and deprivation of his constitutional rights, among other injuries. Plaintiff suffered the indignities and debasement of being jailed on false charges for nearly two months and the upset caused by the false testimony and evidence.

32. The defendants, at all times relevant, and in using force on, arresting, imprisoning, and prosecuting Mr. Grant, and in offering false evidence to the District Attorney, Grand Jurors, and Criminal and Supreme Court Judges, acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to plaintiff's rights and physical and mental well-being.

FIRST CLAIM FOR RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH
AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

33. The plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

34. Defendants violated the Fourth and Fourteenth Amendments by using unreasonable force on Antuan Grant.

35. As a consequence thereof, Antuan Grant was injured.

SECOND CLAIM FOR RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

36. The plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

37. By the actions described above, defendants deprived Mr. Grant of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

38. Plaintiff was unlawfully stopped, arrested and imprisoned, and, as a consequence thereof, Antuan Grant has been injured.

THIRD CLAIM FOR RELIEF FOR
MALICIOUS PROSECUTION UNDER THE UNITED STATES CONSTITUTION

39. The plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

40. By the conduct described herein, defendants are liable to plaintiff under 42 U.S.C. § 1983 for violating his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

41. Defendants commenced or allowed the commencement of a Criminal Court proceeding against Mr. Grant without probable cause and with actual malice. The prosecution caused Mr. Grant's liberty to be deprived. The prosecution terminated in Mr. Grant's favor.

42. As a consequence thereof, Antuan Grant has been injured.

FOURTH CLAIM FOR RELIEF FOR
DENIAL OF PLAINTIFF'S FAIR TRIAL RIGHTS

43. The plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

44. Defendants created false evidence against Antuan Grant.

45. Defendants forwarded false evidence to prosecutors in the Queens County District Attorney's office.

46. In creating false evidence against plaintiff, and in forwarding false information to prosecutors, defendants violated plaintiff's right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

47. As a consequence thereof, Antuan Grant has been injured.

**FIFTH CLAIM FOR RELIEF FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS**

48. The plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

49. The defendants, despite having a reasonable opportunity to prevent, end, or truthfully report the misconduct to which plaintiff was subjected, failed to intervene, thereby violating plaintiffs rights under the Fourth, Fifth, Sixth and Fourteenth Amendments.

50. As a consequence thereof, Antuan Grant has been injured.

**SIXTH CLAIM FOR RELIEF AGAINST DEFENDANTS JACELON
AND O'BRIEN FOR IMPROPER SUPERVISION OF THEIR SUBORDINATES**

51. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

52. At all times relevant, defendants Jacelon and O'Brien were employed as Sergeants by the New York City Police Department with supervisory authority over and responsibility for the conduct of the other defendants.

53. Defendants Jacelon and O'Brien failed to properly supervise their subordinates or to otherwise take action to remedy the wrong done to the plaintiff. Defendants Jacelon and O'Brien were grossly negligent in supervising

the other defendants by, among other things, failing to properly report upon the incident and failing to take any disciplinary action against the other defendants.

54. As a consequence thereof, Antuan Grant has been injured.

Request for Relief

WHEREFORE, plaintiff respectfully request that judgment be entered that Antuan Grant's rights to be free from unreasonable and excessive force, arrest and prosecution under the United States Constitution were violated together with:

- (A) Compensatory damages in an amount to be fixed at trial;
- (B) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages from the defendants in an amount to be fixed at trial;
- (C) An award to plaintiff of the costs and disbursements herein;
- (D) An award of attorney's fees under 42 U.S.C. §1988;
- (E) Such other and further relief as this Court may deem just and proper.

Dated: July 24, 2015
Brooklyn, New York

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By: Matthew Flamm